UNITED STATES BANKRUPTCY APPELLATE PANEL
FOR THE FIRST CIRCUIT

IN RE GENERAL ORDERS OF THE UNITED STATES BANKRUPTCY APPELLATE PANEL FOR THE FIRST CIRCUIT.	* * * *	AMENDED GENERAL ORDER NO. 2 December 16, 2024

AMENDED GENERAL ORDER NO. 2 REGARDING ELECTRONIC FILING AND OTHER PERMISSIBLE FILING METHODS

Before FINKLE, Chief Judge, LAMOUTTE, CABÁN, GODOY, CARY, FAGONE, PANOS, KATZ, AND GONZÁLEZ, U.S. Bankruptcy Appellate Panel Judges.

The United States Bankruptcy Appellate Panel for the First Circuit ("BAP") adopts the following rules to govern the electronic filing of documents in cases before the BAP. **Effective December 17, 2024, this Order and the accompanying rules supersede the BAP's General Order No. 2 issued on May 10, 2010.** For purposes of these rules, "electronic filing" includes filing: (1) using the BAP's Electronic Case Filing System; or (2) by email. "Electronic Filer" includes anyone filing: (1) using the BAP's Electronic Case Filing System; or (2) by email.

These provisions may be further amended from time to time, with or without prior notice, by further order of the BAP. The BAP Clerk may make changes to the procedures for electronic filing to adapt to changes in technology or to facilitate electronic filing. Any changes to procedures will be posted on the BAP's website. The BAP may deviate from these procedures in specific cases if deemed appropriate in the exercise of its discretion.

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RULE 1
Electronic Filing Via ECF System

(a) **Scope.** Except as otherwise prescribed by local rule or order, all cases will be part of the BAP's Electronic Case Management/Electronic Case Filing ("CM/ECF") System.

(b) **ECF Filing by Attorneys.** Except as set forth in Rule 2(a), attorneys filing documents with the BAP must file all documents electronically using the BAP's Electronic Case Filing ("ECF") System, which is a part of the CM/ECF System.

(c) **ECF Filing by Unrepresented Litigants.** Use of the ECF System is voluntary for all litigants proceeding without representation by an attorney ("unrepresented litigants").

RULE 2
Filers Exempt from Using the ECF System

(a) Attorneys, for Good Cause. Upon motion and a showing of good cause, the BAP may exempt an attorney from the mandatory requirement to file using the ECF System and authorize filing by other means. A previously received exemption from a bankruptcy court will constitute good cause.

(b) Unrepresented Litigants. Unrepresented litigants are deemed exempt from the mandatory requirement to file documents using the ECF System.

(c) Permissible Methods of Filing for Exempt Attorneys and Unrepresented Litigants. Attorneys who have received an exemption under subdivision (a) and unrepresented litigants who choose not to file by the ECF System may file documents by any of the following methods:

(1) in person with the BAP Clerk's office, located on the second floor, John Joseph Moakley U.S. Courthouse, 1 Courthouse Way, Boston, MA 02210;
(2) by U.S. mail, to: U.S. Bankruptcy Appellate Panel, John Joseph Moakley U.S. Courthouse, 1 Courthouse Way, Suite 3-440, Boston, MA 02210;
(3) by third-party commercial carrier, at the address specified in Rule 2(c)(2) above;
(4) by facsimile, upon approval from the BAP Clerk, in accordance with the provisions of 1st Cir. BAP L.R. 8001-1(c)(2), to (617) 748-9665; or by email, to bap01_prose_filings@ca1.uscourts.gov, after filing a completed *Election to File Court Documents by Email* form. https://www.bap1.uscourts.gov/sites/bap1/files/ElectiontoFileCourtDocumentsByEmail.pdf
(5) All email filings are subject to the requirements set forth in Rule 3 below.

All filings made by one of the above methods are subject to the service requirements of Rule 5, below.

(d) Sealed Documents. Sealed documents and motions for permission to file a document under seal must be filed in paper form only.

RULE 3
Electronic Filing Via Email

(a) Requirement to Complete *Election to File Court Documents by Email* Form. Each unrepresented litigant and exempt attorney who chooses to file by email ("Email Filer") must complete an *Election to File Court Documents by Email* form and submit the completed form, in Portable Document Format ("PDF"), to bap01_prose_filings@ca1.uscourts.gov. The BAP will reject any email submission unless a completed *Election to File Court Documents by Email* form has been submitted.

(b) Electronic Mailbox. Email Filers must email documents in PDF format to the electronic mailbox designated in Rule 2(c)(5) above. The BAP will not consider any text in the email itself and will only upload to the docket the attached PDF(s).

(c) Required Information. All email submissions of documents must include the following information in the subject line:

(1) the BAP case number, if one has been assigned, and the bankruptcy court case number;
(2) the litigant's name;
(3) the litigant's designation in the case (e.g., appellant, appellee);
(4) the type of document (e.g., motion, brief, appendix); and
(5) the date of submission.

The information required in subsections (c)(1)-(5) above, must be presented in the subject line in the following format:

Bankr. Case No. 00-01234; BAP No. MW 00-123; ABC Corp., Appellant; [Name of Motion]; mm/dd/yy.

(d) Single Email Per Submission. When an Email Filer submits a set of documents that are intended to be considered together, the filer must submit the PDFs of all those documents in a single email.

(e) Consequences of Email Submission. If the Email Filer has completed an *Election to File Court Documents by Email* form, submission of a document via email to the email address designated in Rule 2(c)(5) constitutes:

(1) filing of the document under the Federal Rules of Bankruptcy Procedure and the First Circuit BAP Local Rules, and entry of the document on the docket kept by the BAP Clerk;
(2) authorization for the BAP Clerk to docket the document(s) in the CM/ECF System;
(3) the Email Filer's signature for purposes of Fed. R. Bankr. P. 8011(e) as set forth in Rule 4 below; and
(4) consent to be served exclusively by email at the email address indicated in the *Election to File Court Documents by Email* form.

(f) Date of Filing. Notwithstanding the date and time generated by the ECF System, documents submitted by email in accordance with the above procedures will be deemed filed on the BAP's docket on the date appearing on the email in the designated electronic mailbox.

(g) Limitation. The *Election to File Court Documents by Email* form is valid only for the appeal in which it is filed. A separate election form must be filed for each new appeal.

(h) Reporting Changes to Email Address. Email Filers must promptly file with the BAP a statement of any change in email address.

RULE 4
Signature on Documents Filed Via Email

Every document filed by email must include the Email Filer's signature. A filing submitted by email, together with the Email Filer's name on a signature block, constitutes the Email Filer's signature for purposes of the Federal Rules of Bankruptcy Procedure, the First Circuit BAP Local Rules, and any other purpose for which a signature is required in connection with proceedings before the BAP. The Email Filer's name on the signature block may be either a scan of the individual's handwritten signature, an electronically inserted image intended to substitute for a signature, or a "/s/ name of signatory," which shall have the same validity and effect as a handwritten signature. The signature block must also set forth the Email Filer's name, address, telephone number, and email address.

RULE 5
Service of Documents Filed Outside the ECF System

(a) Manner of Service. In accordance with Fed. R. Bankr. P. 8011(c), documents filed by any means other than through the ECF System must also be served by one of the following methods on the other parties to the appeal: personal delivery; mail; third-party commercial carrier; or email, if the entity served consented in writing to email service. Service on a party represented by counsel must be made on the party's counsel.

Electronic filing by email submission to the electronic mailbox designated in Rule 2(c)(5) does not satisfy the service requirements of this rule or Fed. R. Bankr. P. 8011(c).

(b) Proof of Service. Proof of service in the form of a certificate that complies with Fed. R. Bankr. P. 8011(d) is required for all documents filed by any means other than through the ECF System. The certificate of service must include a separate signature that complies with these rules and the Federal Rules of Bankruptcy Procedure.

RULE 6
Registration and Training for ECF Filing

(a) Generally. Unrepresented litigants who choose to use the ECF System to file documents and attorneys who practice before the BAP must register with the ECF System. Registration is required to obtain a login and password for use of the ECF System. Attorneys and unrepresented litigants who choose to use the ECF System may register at www.pacer.gov. An ECF Filer is an entity who has obtained a login and password to file documents electronically. The BAP encourages ECF Filers to complete the computer-based training modules listed on the BAP's website before filing an electronic document using the ECF System. ECF Filers must familiarize themselves with the CM/ECF User's Guide, together with other training materials concerning electronic filing at the BAP, including Frequently Asked Questions, all of which are available on the BAP's website at: www.bap1.uscourts.gov.

(b) Effect of ECF Registration. Registration as an ECF Filer constitutes consent to service via the CM/ECF System of all documents as provided in these rules, the Federal Rules of Bankruptcy Procedure, and the First Circuit BAP Local Rules. All ECF Filers must inform the BAP Clerk immediately of any change in their contact information. Any changes to an ECF Filer's contact information, including physical address, telephone number, facsimile number, or email address, must be made through the PACER Service Center, which can be accessed at www.pacer.uscourts.gov.

(c) Protecting the Password. ECF Filers agree to protect the security of their logins and passwords and immediately notify the PACER Service Center and the BAP Clerk if they learn, or have reason to suspect, that their login or password has been compromised. ECF Filers may be sanctioned for failure to comply with this provision.

RULE 7
Revocation

In addition to other sanctions imposed by the BAP, the BAP may terminate the electronic filing privileges of any Electronic Filer for violating any provision of Amended General Order No. 2, for otherwise misusing the ECF System or the BAP's email addresses, or for any other reason in the sole discretion of the BAP.

RULE 8
Consequences of Electronic Filing Via the ECF System

(a) Generally. Electronic transmission of a document to the ECF System in compliance with these rules, together with the transmission of a Notice of Docket Activity from the CM/ECF System, constitutes filing of the document under the Federal Rules of Bankruptcy Procedure and the First Circuit BAP Local Rules, and constitutes entry of the document on the docket kept by the BAP Clerk.

(b) Timing of Filing. Filing via the ECF System is permitted at all times, except when the system is temporarily unavailable due to routine or emergency situations. When a document has been filed electronically, the official record is the electronic document stored by the BAP. A document filed via the ECF System is deemed filed at the date and time stated on the Notice of Docket Activity generated by the CM/ECF System. Unless otherwise required by statute, rule, or order of the BAP, electronic filing must be completed by midnight in the time zone of the BAP Clerk's office in Boston to be considered timely filed that day. The ECF Filer, however, should not expect that the filing will be addressed outside of regular business hours.

(c) Failure to Receive Notice of Docketing Activity. ECF Filers are advised that they must contact the BAP Clerk's office if they transmit a document to the ECF System but do not receive a Notice of Docket Activity. If the CM/ECF System does not transmit a Notice of Docket Activity, the ECF Filer's filing attempt failed, and the document was not filed. If a technical failure prevents timely electronic filing of any document, the filing party must promptly seek relief from the BAP.

RULE 9
Signature on Documents Filed Via the ECF System

(a) Generally. Every document filed via the ECF System must include the ECF Filer's signature. The user login and password required to submit documents to the ECF System, together with the ECF Filer's name on a signature block, constitutes the ECF Filer's signature for purposes of the Federal Rules of Bankruptcy Procedure, the First Circuit BAP Local Rules, and any other purpose for which a signature is required in connection with proceedings before the BAP. The ECF Filer's name on the signature block may be either a scan of the individual's handwritten signature, an electronically inserted image intended to substitute for a signature, or a "/s/ name of signatory," which shall have the same validity and effect as a handwritten signature. The signature block must also set forth the ECF Filer's name, address, telephone number, and email address.

(b) Multiple Signatures. The filer of any electronically filed document requiring multiple signatures (for example, stipulations) must list thereon all the names of other signatories by means of a "/s/ [name]" block for each. By submitting such a document, the ECF Filer certifies that each of the other signatories has expressly agreed to the form and substance of the document, and that the ECF Filer has their authority to submit the document electronically. In the alternative, the ECF Filer may submit a scanned document containing all necessary signatures.

(c) Unauthorized Use of Login and Password. No ECF Filer or other person may knowingly permit or cause an ECF Filer's login and password to be used by anyone other than an authorized agent of the ECF Filer.

RULE 10
Service of Documents Filed Via the ECF System

(a) Generally. The CM/ECF System will generate a Notice of Docket Activity when any document is filed electronically. This notice constitutes service of the document on all litigants who are duly registered as ECF Filers pursuant to Rule 6. Such registration constitutes consent to service via Notice of Docket Activity.

(b) Non-Registrants. Litigants who are not registered as ECF Filers must be served with a copy of any electronically filed document in some other way authorized by Fed. R. Bankr. P. 8011(c). Similarly, a document filed in paper form pursuant to Rule 2 must be served using an alternate method of service prescribed by Fed. R. Bankr. P. 8011(c).

(c) Certificate of Service. The Notice of Docket Activity does not replace the certificate of service required by Fed. R. Bankr. P. 8011(d). ECF Filers must include certificates of service with any electronically filed document which state whether the parties being served are ECF Filers being served electronically by the Notice of Docket Activity or whether they are being served using an alternate method of service and, if so, which method. The certificate must also provide the other information required by Fed. R. Bankr. P. 8011(d).

RULE 11
Formatting and Technical Requirements for Electronic Filing

(a) Format of Document. Documents must be formatted for electronic filing by converting the original word-processing document into PDF. PDF images created by scanning paper documents do not comply with this Rule. Exhibits which are submitted as attachments to an electronically filed pleading, however, may be scanned and attached if the Electronic Filer does not possess a word-processing version of the document.

(b) Appendices. An electronically filed appendix may contain multiple attachments. The description of each attachment as entered by the Electronic Filer must identify the page numbers within the appendix, for example "Appendix, pages 51-100."

(c) Searchable Text. Except as otherwise specified in this Rule, or as otherwise ordered, the text of all electronic filings must be searchable using Adobe Acrobat's text search function.

(d) Non-Searchable Text. For some documents, primarily exhibits, a text searchable version might not be available. If so, the Electronic Filer may upload a version that is not text searchable.

(e) Technical Failures. An Electronic Filer whose filing is made untimely as the result of a technical failure may seek appropriate relief from the BAP.

RULE 12
Privacy

(a) Personal Data Identifiers. In compliance with Fed. R. App. P. 25(a)(5) and Fed. R. Bankr. P. 9037, Electronic Filers must refrain from including, or must partially redact where inclusion is necessary, the following personal data identifiers from all documents filed with the BAP:

(1) All but the last four digits of social-security and taxpayer-identification numbers;
(2) Minors' names (use initials only);
(3) Dates of birth (use year of birth only); and
(4) Financial account numbers (identify the type of account and institution and provide the last four digits of the account number).

(b) Redaction Responsibility. The Electronic Filer bears sole responsibility for redaction.

RULE 13
Other Limitations and Restrictions Concerning ECF

(a) Attorneys of Record. Unless otherwise authorized, attorneys who are duly registered as ECF Filers pursuant to Rule 6 above, may only file documents in BAP appeals where that attorney is counsel of record.

(b) Additional Copies. Except as otherwise specified in this Rule, or as otherwise ordered, an ECF Filer may not submit (by U.S. Mail, other mail services, facsimile, or by email) additional copies of any documents filed electronically through ECF.

(c) Hyperlinks. Documents filed electronically may contain hyperlinks except as stated herein. Hyperlinks may not be used to link to sealed or restricted documents. Hyperlinks to cited authority may not replace standard citation format. Complete citations must be included in the text of the document. A hyperlink, or any site to which it refers, will not be considered part of the record. The BAP accepts no responsibility for the availability or functionality of any hyperlink, and does not endorse any product, organization, or content at any hyperlinked site, or at any site to which that site might be linked.

FOR THE PANEL:

Dated: December 16, 2024

By: /s/ Leslie C. Storm
Leslie C. Storm, Clerk